

Ram Chandra Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 18 April 2016 · WRIT - C No. 14513 of 2016 · **Writ disposed of with liberty to complain under Clause 6.5(b); recovery stayed; connection to be restored on deposit.**

HEADNOTE

A consumer who disputes the accuracy of an electricity bill on which recovery has been initiated must pursue the complaint before the competent authority under Clause 6.5(b) of the U.P. Electricity Supply Code, 2005. Disputed questions of fact are not decided in writ. The petition was disposed of with liberty to complain within one week, the authority to pass orders within two further weeks, recovery kept in abeyance for four weeks or till disposal of the complaint, and the connection to be restored forthwith after deposit.

FACTUAL SUMMARY

Ram Chandra Singh approached the Allahabad High Court challenging recovery proceedings initiated by the power corporation for outstanding electricity dues. He disputed the correctness of the bill on which recovery had been launched. On 1 April 2016 the Court granted the corporation two weeks to take instructions on arrears. At the adjourned hearing the petitioner pressed the challenge to the bill and the recovery, and counsel for the corporation appeared.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5(b)

complaint against accuracy of bill

HOLDING

Clause 6.5(b) of the U.P. Electricity Supply Code, 2005 provides the complaint before the competent authority where the consumer disputes the accuracy of the bill. Because disputed questions of fact were involved and that statutory remedy was available, the writ was disposed of with liberty to complain under Clause 6.5(b) within one week; the authority was directed to consider and pass orders in accordance with law within two weeks of the complaint; recovery was to remain in abeyance for four weeks or till disposal of the complaint, whichever was earlier, and to abide by the authority's orders; after the petitioner deposited the amount, the electricity connection was to be restored forthwith. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE BILL AND THE QUANTUM OF OUTSTANDING DUES

Treated as disputed questions of fact for the Clause 6.5(b) authority. ¶ 1